

Court No. - 39

Case :- WRIT - C No. - 21911 of 2020

Petitioner :- Surjeet Singh

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Neeraj Srivastava

Counsel for Respondent :- C.S.C., Amit Krishna, Pranjali Mehrotra

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel Shri Neeraj Srivastava appearing for the petitioner, learned Standing Counsel for the respondent nos.1, 5 & 6 and Shri Pawan Kumar Mishra, learned counsel representing the respondent no.3 & 4 and Shri Amit Krishna, learned counsel for the respondent no.2.

The instant petition has been filed seeking following relief:

A. Issue a writ, order or direction in the nature of certiorari quashing the demand notice dated 3.6.2019, recovery citation bearing reference no.336 dated 30.7.2020 issued from the office of Tehsildar pursuant to RC no.747 dated 25.7.2020 issued by the respondent no.3, Executive Engineer, Electricity Distribution Division-II, Rampur, Paschimanchal Vidyut Vitran Nigam Ltd.;

B. Issue a writ, order or direction in the nature of mandamus directing the respondents not to take any coercive action against the petitioner in pursuance of demand notice dated 3.6.2019, recovery citation bearing reference no.336 dated 30.7.2020 issued from the office of Tehsildar pursuant to RC no.747 dated 25.7.2020 issued by the respondent no.3;

C. Issue a writ, order or direction in the nature of mandamus directing the respondent no.4 to decide the objection filed by the petitioner under Chapter VII of the Electricity Supply Code to the Electricity Consumer Grievance Redressal Forum raising his objection against the impugned demand notice dated 3.6.2019;

D. Any other relief which this Hon'ble Court may deem fit and proper in the facts and circumstances of the case;

E. Award the cost to the petitioner.

The submission of the learned counsel for the petitioner is that a

surprise inspection was made in the premises of the petitioner on 29.3.2019 and the petitioner was found involved in theft of electricity and pursuant to which the proceeding under Section 126 of the Electricity Act has been initiated against him, however, he was never served with the provisional assessment. Thereafter the proceeding has been initiated for the recovery of Rs.4,03,939/- by issuing a demand notice on 3.6.2019 in an illegal and arbitrary manner.

It is further submitted that being aggrieved by the demand notice, the petitioner has already approached the Electricity Consumer Grievance Redressal Forum under Chapter VII of UP Electricity Supply Code, 2005 by filing a complaint. The said proceeding is pending before the respondent no.4, yet the recovery citation has been issued by the respondent no.3 on 30.7.2020. As such the recovery citation issued against the petitioner is per se illegal and unwarranted.

Per contra learned counsel for the respondents has contended that the proceeding has been initiated against the petitioner after adhering to the provision prescribed under the Act and the petitioner has not preferred any statutory appeal against the final assessment, hence no indulgence may be granted in favour of the petitioner.

Having considered the submissions advanced by the learned counsel for the parties, since the petitioner has already approached the Electricity Consumer Grievance Redressal Forum under Chapter VII of UP Electricity Supply Code, 2005 by means of complaint, as such the respondent no.4 is directed to decide the same in accordance with law after affording opportunity of hearing to the petitioner as expeditiously as possible, preferably within a period of six weeks from the date of presentation of a copy of this order. The impugned recovery citation no.747 dated 25.7.2020 issued by the respondent no.3, shall be subject to the final decision as may be decided by the respondent no.4.

The writ petition is accordingly disposed of.

Order Date :- 4.1.2021

M. Tariq